FARMERS

ADDITIONAL INSURED - OWNERS, LESSEES OR CONTRACTORS - COMPLETED OPERATIONS

This endorsement modifies insurance provided under the following:

BUSINESSOWNERS LIABILITY COVERAGE FORM
BUSINESSOWNERS COMMON POLICY CONDITIONS

With respect to coverage provided by this endorsement, the provisions of the Coverage Form apply unless modified by the endorsement.

SCHEDULE

Name Of Additional Insured Person(s) Or Organization(s):	Location And Description Of Completed Operations
KIER CONSTRUCTION 3710 QUINCY AVE OGDEN UT 84403	JERRY BURNETT APARTMENTS 270 N 300 W KAYSVILLE UT 84037
If no entry appears above, information required to complete this endorsement will be shown in the Declarations.	

The BUSINESSOWNERS LIABILITY COVERAGE FORM is amended as follows:

A. With respect to the additional insured described in paragraph **C.** of this endorsement, subparagraph **1.a. Business Liability** under Section **A. Coverages** is replaced by the following:

a. We will pay those sums that the insured becomes legally obligated to pay as damages because of "bodily injury" or "property damage" to which this insurance applies. We will have the right to defend the insured against any "suit" seeking those damages using counsel of our choosing. However, we will not defend the insured against any "suit" seeking damages for "bodily injury" or "property damage" to which this insurance does not apply. We may, at our discretion, investigate any "occurrence" and settle any claim or "suit" that may result. But:

(1) The amount we will pay for damages is limited as described in Section **D** - Liability And Medical Expenses Limits Of Insurance. However, in the event that such limits of insurance exceed the limits of insurance required by the written contract or written agreement, the insurance provided by this endorsement shall be limited to the limits of insurance required by the written contract or written agreement. This endorsement shall not increase the limits as described in Section **D** - Liability And Medical Expenses Limits Of Insurance; and

(2) Our right to defend ends when we have used up the applicable limit of insurance in the payment of judgments or settlements or medical expenses.

No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Coverage Extension - Supplementary Payments.

B. With respect to the additional insured described in paragraph **C.** of this endorsement, the following exclusions are added to paragraph **1. Applicable To Business Liability Coverage** under Section **B. Exclusions:**

This insurance does not apply to:

1. Any liability due to negligence attributable to any person or entity other than the Named Insured; or
2. Any person or entity if a "wrap up policy" is in effect for work performed at the location designated and described in the schedule of this endorsement.

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C. Section **C. Who Is An Insured** is amended to include as an additional insured the person(s) or organization(s) shown in the Schedule, but only with respect to liability for "bodily injury" or "property damage" caused, in whole or in part, by "your work" and resulting from your negligence at the location designated and described in the schedule of this endorsement performed for that additional insured and included in the "products-completed operations hazard".

D. The conditions under Section **E. Liability And Medical Expenses General Conditions** also apply to the additional insured described in paragraph **C.** of this endorsement.

E. With respect to this endorsement, "wrap up policy" means an Owner or Contractor Controlled Insurance Program providing one or a series of policies designed to cover a specific construction project that insures all of the persons and entities working on such project.

The BUSINESSOWNERS COMMON POLICY CONDITIONS are amended as follows:

With respect to the additional insured described in paragraph **C.** of this endorsement, Section **H. Other Insurance** is replaced by the following:

H. Other Insurance

1. Primary and Non Contributory Insurance

The coverage provided to an additional insured under this endorsement shall be primary and non-contributory ONLY to any insurance issued directly to the additional insured if:

a. The Named Insured agreed in a written contract or written agreement to provide the additional insured coverage on a primary and non contributory basis;

b. Such written contract or written agreement referenced in **a.** above was executed prior to the issuance of this endorsement;

c. The additional insured designated herein has a policy with an Other Insurance provision making this policy excess; and

d. There is no "wrap up policy" in effect for the work performed at the location designated in the Schedule of this endorsement.

2. Excess Insurance

If there is other valid and collective insurance available to the additional insured as an additional insured under other policies covering the work performed at the location designated and described in the schedule of this endorsement, this insurance will be excess over those policies.

This endorsement is part of your policy. It supersedes and controls anything to the contrary. It is otherwise subject to all the terms of the policy.